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CASE #	CASE NAME	HEARING NAME
CVRI2502539	ADEMCO INC. vs VALITUS TECHNOLOGIES INC.	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling: Plaintiff's Motion to Set Aside Dismissal is granted. Case Management Conference and an Order to show cause is set for 9/8/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of ALL defendants on complaint pursuant to CRC 3.110(g) as to PLAINTIFF AND RONNIE CHOW.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503317	ALSHALABI vs TOYOTA MOTOR SALES, U.S.A., INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiff's Motion for Attorney's Fees and Costs is granted in the reasonable reduced amount of \$17,352.31 (\$15,300.00 attorney fees + \$2,052.31 costs).

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, Plaintiff accepted Defendant's C.C.P. § 998 offer, which states that Plaintiff is the prevailing party and that Defendant shall pay Plaintiff's attorney fees, costs, and expenses upon separate motion. (David Decl., Exh. 1, ¶ 1.)

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hour spent on the case. (*Ibid.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records and Declaration of Chad A. David, counsel spent:

Timekeeper	Hours	Rate / Hour	Total
Chad David, Managing Partner	5.6	\$795.00	\$4,452.00
Nicolas Dillavou, Partner	20.2	\$745.00	\$15,049.00
Joshua Youssefi, Partner	17.1	\$745.00	\$12,739.50
Lisa Tyler, Paralegal	11.3	\$250.00	\$2,825.00
Inigo Gatus, Paralegal	0.7	\$250.00	\$175.00
Anna Costello, Paralegal	23.2	\$250.00	\$5,800.00
Wrap-Up Fees	5.0	\$745.00	\$3,725.00
TOTAL	83.1		\$44,765.50

Here, the hourly rates are not reasonable for Riverside County.

Next, there were six timekeepers in this case. A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) In this case, there was one managing partner, two partners, and three paralegals. However, Plaintiff does not explain how this routine lemon law action, which required no law and motion, and settled via a C.C.P. § 998 offer, necessitated the higher billing rates of managing partners or any partner at all. Accordingly, the attorneys' hourly rates are reduced to that of an associate attorney.

A review of the billing records shows that counsel and staff billed for administrative and clerical tasks, such as status meetings, internal emails, case organization, updating case notes, document preparation, and calendaring. Accordingly, the Court strikes 0.8 hour from Attorney David's billing, 0.4 hour from Attorney Dillavou's billing, 3.0 hours from Attorney Youssefi's billing, 5.2 hours from Paralegal Castillo's billing, 2.5 hours from Paralegal Tyler's billing, and 0.2 hour from Paralegal Gatus' billing.

The billing records also show duplicative and excessive time entries. For example, on April 1, 2026, Paralegal Tyler billed 0.2 hour three separate times to email the client regarding videos. On September 23, 2025, Paralegal Costello billed 0.2 hour three separate times for discussing the deposition with the client. Paralegal Costello also billed 0.9 hour for drafting and serving a case management statement and notice of posting jury fees. Attorney Youssefi billed 1.1 hours for reviewing the file notes, repair orders, and document production, despite previously billing 0.2 hour for reviewing Defendant's documents earlier that day, and Attorney David previously reviewing repair

orders. Accordingly, the Court strikes 0.4 hour from Paralegal Tyler's billing, 0.9 hour from Paralegal Costello's billing, and 0.7 hour from Attorney Youssefi's billing.

Counsel then seeks 5.0 hours in wrap-up fees to review the opposition, draft the reply, and attend the hearing on this motion. However, Attorney David already billed 4.0 hours to draft the fee motion, and Paralegal Tyler billed 1.4 hours for finalizing the initial fee motion. There is no reason why such a routine fee motion should require more than 4.0 hours to draft. Accordingly, the Court strikes 1.4 hours from Paralegal Tyler's billing, and strike 5.0 hours from the wrap-up fees in full.

Defendant's challenges for unnecessary/overbilled tasks, discovery, etc. are not supported. As such, the Court awards the following:

Timekeeper	Hours	Rate / Hour	Total
Chad David, Managing Partner	4.8	\$300.00	\$1,440.00
Nicolas Dillavou, Partner	19.8	\$300.00	\$5,940.00
Joshua Youssefi, Partner	13.4	\$300.00	\$4,020.00
Lisa Tyler, Paralegal	8.4	\$150.00	\$1,260.00
Inigo Gatus, Paralegal	0.5	\$150.00	\$75.00
Anna Costello, Paralegal	17.1	\$150.00	\$2,565.00
Wrap-Up Fees	0.0	\$300.00	\$0.00
TOTAL	64.0		\$15,300.00

COSTS

Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. Defendant argues that Plaintiff has failed to separately file a memorandum of costs as required by California Rules of Court, Rule 3.1700, but merely attaches a copy of the memorandum as Exhibit 8 to the motion. Plaintiffs contend that the C.C.P. § 998 offer specified fees and costs are to be sought via separate motion, a point that Defendant does not address. (David Decl., Exh. 1, ¶ 1.) In addition, pursuant to Civil Code § 1794(d), a prevailing buyer in a Song-Beverly action "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses...." (Civ. Code, § 1794(d).)

Here, Plaintiff submits an unfilled memorandum of costs totaling \$2,052.31. (David Decl., Exh. 8.) Under the Song-Beverly Act, the Legislature intended the use of "costs and expenses" to include items excluded under C.C.P. §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Defendant does not dispute any cost specified in the attached exhibit. Upon review, Plaintiff's claimed costs appear reasonable.